



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 12245
(FIFTH REVISION)

SEP 16 2003

EXPIRATION DATE: August 31, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: GE Betz
Trevose, PA
(Former grantee: BetzDearborn, Inc.)

(See Appendix A to this exemption for a list of additional grantees)

2. PURPOSE AND LIMITATION:

- a. This exemption authorizes the discharge of certain Class 8 and Class 9 liquids from UN31HH1 and UN31HA1 composite intermediate bulk containers (IBCs) without removing the IBC from the vehicle on which it is transported. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.

- b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.834(h) in that an IBC is unloaded while on a motor vehicle; and the marking requirements in § 172.302(c), except as specified herein.
5. BASIS: This exemption is based on the application of GE Betz dated August 29, 2003, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Amines, liquid, flammable, n.o.s. or Polyamines, liquid corrosive, flammable, n.o.s.	8	UN2734	II
Amines, liquid, corrosive, n.o.s. or Polyamines, liquid, corrosive, n.o.s.	8	UN2735	II
Caustic alkali liquids, n.o.s. RQ	8	UN1719	II
Corrosive liquid, acidic, organic, n.o.s.	8	UN3265	II
Corrosive liquid, acidic, inorganic, n.o.s.	8	UN3264	III
Corrosive liquid, basic, inorganic, n.o.s.	8	UN3266	III
Other regulated substances, liquid, n.o.s.	9	NA3082	III
Sodium hydroxide solution	8	UN1824	II

7. SAFETY CONTROL MEASURES:a. PACKAGING -

- (1) Packagings prescribed are UN31HH1 and UN31HA1 IBCs.
- (2) IBCs may not be manifolded.
- (3) IBCs are to be discharged using air driven, mechanical pumps with a positive means of stopping flow from the delivery hose.

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(4) All vehicles must have a minimum of two emergency shut off valves to stop the discharge of liquid. One valve will stop the flow of air to the pump and one valve will stop the flow of liquid into the hose reel.

b. OPERATIONAL CONTROLS -

(1) The IBC must be attended at all times during unloading operations by a qualified person. For the purposes of this requirement, "attended" and "qualified" have the meanings described in § 177.834(i)(3) and (4), respectively.

(2) The IBC may be unloaded but may not be refilled while on a motor vehicle.

(3) All hazardous material must be cleared from the piping, IBC discharge hose and hose reel prior to transportation. Hoses may not be attached to the IBCs during transportation.

(4) A maximum of 300 gallons of each hazardous material may be discharged into a single storage tank at one customer location per delivery, per day.

(5) Two or more materials may not be loaded on the same vehicle if, as a result of any mixture of the materials, an unsafe condition would occur.

(6) IBCs may not be pressurized during unloading.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. The marking requirement of § 172.302(c) is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

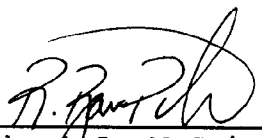
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
for Associate Administrator for
Hazardous Materials Safety

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(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln